

Court No. - 21

Case :- WRIT - C No. - 40397 of 2022

Petitioner :- Krishna And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shailesh Kumar

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Ajit Singh, J.

The petitioners are challenging notice dated 19.08.2021 issued by Executive Engineer Vidhut Vitran Khand Shahganj, Jaunpur (respondent No. 3). It is a notice of provisional assessment in a case of theft of electricity.

The petitioners have filed their objections against the impugned notice. Counsel for the petitioner submits that the respondents be directed to decide the objections filed by the petitioners by means of a speaking order.

Shri Udit Chandra, learned Counsel appearing for respondent Nos. 2 and 3, fairly states that the objections will be decided before any action is taken in the matter.

Accordingly, the petition is disposed of by providing that the objections filed by the petitioners against the notice of provisional assessment will be decided by respondent No.3, by following the procedure prescribed under Clause 6.8 of the Electricity Supply Code, 2005 and until final assessment order is passed, no coercive action shall be taken against the petitioners.

(Ajit Singh, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.1.2023

Ruhi